



DIPANKAR GUPTA

The Law in Their Hands

Rooted in the upper reaches of society, vigilantism is a greater threat than mob violence

To say that mob violence and vigilantism have to do with the breakdown of law and order is, in a generic sense, pure truism. Naturally, if the law enforcement agencies are not effective, then incidents of not just vigilantism, but looting, burning and other kinds of violent crowd behaviour take over.

Yet, these and vigilantism don't belong in the same page. There is, in fact, a fundamental difference behind the causes for these two species of lawlessness and violence. It is necessary to appreciate this difference if we want to tackle both mob violence and vigilantism. Vigilantism is when people, groups or individuals take law in their own hands and mete out exemplary punishment, for example, when prisoners' eyes are gouged out, or when a suspected rapist is lynched. It needs to be noted that those who commit acts of this kind do it in full glare of the law, and indeed may even be policemen and lawyers, as the record in India shows. These demonstrations of vigilantism are not surreptitious, and are carried out with a good degree of public approval.

Mob violence, such as looting and torching of buses, is different. These cases occur on the blind side of the law, and may happen any time, but surreptitiously. Vigilantism gets its specific flavour because it happens in routine circumstances and is like a conspiracy in the sun. Unlike mob behaviour, there is no obvious breakdown of law and order, and yet prisoners turn blind, a Scheduled Caste citizen is whipped in the premises of a court, and so on. In contrast, mob violence occurs when law enforcement officers lose their grip over a particularly tense situation. Buses are burnt, shops looted and people killed. The legal and constitutional systems are not threatened, but often find reinforcement after such wild acts of wanton destruction.

Vigilantism, which thrives on the breakdown of the legal machinery itself, has a different profile. In this sense, it is a greater threat to society. It thrives best in an atmosphere where there is an all-pervading cynicism towards the law. While mob riots are an outcome of an episodic breakdown of the law, for vigilantism there is no law but its own. Mob violence is socially less dangerous when compared to vigilantism.

A breakdown of the law can happen anywhere in the world, even in well-governed democratic societies. From Denmark to the UK and the USA, not to mention India, there

have been instances of mob violence, usually controlled once the police or the paramilitary arrive on the scene.

Vigilantism thrives because of two factors. The first is the de-legitimation of the institution of law itself, the Penal Code, the civil code and even the Constitution. The second is that by acts of commission, and significant omission, those in power participate in breeding an atmosphere conducive to vigilantism. Because political bosses found it useful, urban gangs flourished in the US from the 1830s right up to World War I. Between the Wars, again, politicians used the Italian and Jewish mafia to serve their own ends. Only after World War II did the character of democratic governance in the US change, leading to the demise of widespread gang activism. Therefore, if vigilantism is to take a dive, politicians at the top should show allegiance to the law.

Large parts of Africa are overcome by vigilante activism. This is understandable as the rulers of most of the states in that continent skate on a thin legal surface. The widespread presence of this phenomenon has led scholars to take special interest in the study of vigilantism in Africa. India is nowhere near as bad as Africa is or the US was. And yet, since we are a constitutional republic, such acts of vigilantism should cease. Red flags should be up as the number of such activities in the country grows rapidly.

Vigilantism has little to do with poverty. The American mobsters were not poor, and neither are the gang lords of Africa. Vigilantes are proud of their status and often occupy fairly powerful positions in society. They have the backing of the ruling classes when they are not the rulers themselves. In fact, vigilantism requires that the State machinery be corrupted from within. In contrast, those involved

in mob violence are often frustrated and economically humiliated people. They feel dwarfed by the weight of their circumstances and hit out when nobody is looking.

So let us not give in to superficial explanations such as the breakdown of law and order or poverty and look at the broader structural features that encourage vigilantism. If vigilantism is growing in India, the fault lies in the upper reaches of our society and not at the base where the poor live. To equate vigilantism with mob violence is tantamount to covering up for the rich and the well-placed.



SAURABH SINGH

The author is professor at the Centre for the Study of Social Systems, Jawaharlal Nehru University, Delhi